
Barford Primary School Audit Report**Audit Date: 10 March 2020****Report: Year 2 visit 2****DPE: Linda Mortimer****School members** Acting Headteacher: Alice Whittingham / School Secretary: Lynne Brown

1. Visit details

Action highlighted at the time of the previous visit were discussed. The new Data Dashboard was demonstrated as well as a review of progress regarding completion of the Best Practice Checklists, use of the Compliance Manager to share key documents with staff and also the Record of Processing Tool. A draft list of management processes will be shared with the school for their review and comment. This preparation will help with the data mapping of key management processes as required under Article 30 of the GDPR regulations.

Barford Primary is part of the Wymondham Cluster and works in line with the Cluster GDPR Policy. The school would like confirmation regarding which other policies will be at a Cluster level as opposed to individual school level. LM is to meet with the Cluster representative in the Easter holidays to gain confirmation of which policies will be at Cluster level and which will remain individual.

The Acting Headteacher is intending to introduce a programme of GDPR self-audit. This will involve the GDPR Governor and the Acting Headteacher and will take place on a termly basis.

Actions recommended at time of Audit on 29.10.19

All actions and recommendations at the time of this audit have been considered and actioned, apart from:

The school had considered key code entry but as the medical cabinet is positioned within, have decided not to at present – the school has carried out a risk assessment and considered the consequences if the after-school club could not access this medical information and have decided to continue with this practice.

Action points: Add information at reception to inform visitors where they can access the school's privacy statement. See note below re Privacy Notice*

Actions and findings at time of Audit on 10.3.20

Privacy Notice: The Privacy Notice* on the school website does not include a detailed list of third parties with whom the school shares PII information. The school has queried whether the third parties, as detailed in GDPRIS and their GDPR compliance. Following further consultation with the DPE team, it is safe for the school to assume that third parties noted under GDPRIS are GDPR compliant.

DPE recommend that a common sense approach is taken towards other third parties not noted under GDPRIS. Where the parties are well established educational providers eg SIMS, Pupil Asset, PIXL etc, that they are compliant. Should the school enter into a contract with a less well known third party then DPE recommends that due diligence is carried out and the school completes the Third Parties Checklist available on Knowledge Bank.

GDPR Policy: The school has published the Cluster GDPR Policy, which should have been reviewed in Summer 2019. Policy also states that SL is the DPO (see Pages 1 and 7), this should be amended to Data Protection Education. The school has updated the GDPR Policy, has been ratified by Governors on 18.7.19, for review in Summer Term 2021. This will now be published on the school's website.

SAR: Details of how to apply for a Subject Access Request is published on the school website.

FOI Policy: This policy is published on the school website.

FOI Publication Scheme: This was discussed and further information can be found under the News tab on Knowledge Bank. The school queried whether this could / should be at Cluster level. DPE are now looking at providing a pre-populated Publication Scheme and schools will be able to select what is appropriate to them. This document, which will be based on the ICO standard template, should be available after Easter.

Best Practice Checklists: Were reviewed at the time of the visit and the school has made good progress with completion.

Staff Training: All staff should complete GDPR 101. School will prioritise teaching staff to complete by the middle of summer term 2020. The Acting Headteacher will prioritise other, shorter online courses for all staff to complete, starting with Data Breach. Staff completion can be checked on the Dashboard in Knowledge Bank – go to: Reports/Select Reports/Course Enrolment. A GDPR 20-minute refresher course will be available shortly on Knowledge Bank. DPE recommend that staff should refresh their main GDPR training every 2 years.

Policies: DPE recommend that the following policies should be adopted by the school, ratified by Governing Body and where appropriate, will be published on the school website. These are; Records Management, Information Classification, Clear Desk and Screen, Working away from School.

Password Policy: The introduction of a Password Policy was discussed. Initially, school staff will complete online training available on KB. Management of passwords has also been included in a recent staff meetings and staff have a raised awareness.

Photo & Video Guidance: This guidance was downloaded at the time of the audit and will be shared with staff via Compliance Manager.

Cyber Questionnaire: The school has requested that their IT Technician completed the questionnaire in October 2019. The school will again request that this is completed as the information may be required when the RoP is completed.

Consent: The school uses the Cluster's Consent form which has been checked with the DPE standard consent form.

Retention Schedule: The school is clear on retention schedules and refers to the IRMS Toolkit for guidance

SEND Record Management: Majority of SEND paperwork is electronic, remaining hard copies are retained in student files which are kept in locked cabinets in classrooms. **Safeguarding paperwork:** The school does not use an electronic platform for managing Safeguarding reports/paperwork. Hard copies are used with limited access and retained in locked cabinets. School prefers to hand deliver this sensitive paperwork, but school is clear about the use of special delivery to enable tracking. School will keep a copy until notified the paperwork is received and then destroy.

Management of Student Assessment: The school uses hard copies which are retained in student files and kept in locked cabinets in classrooms.

Management of Communication with Parents: The school uses Pupil Asset to provide communication to parents via text and email. Pupil Asset is also used for sending family update forms to parents for their review, to amend the information held by the school.

Naming convention: All exercise books, work trays, files, displays and coat pegs use first names only.

Laptops: Are encrypted, password protected and accounted for on a regular basis.
The school has shared the Working Away from School Policy with all staff who work at home.

iPads: The school will ask their IT Technician to check that Find my iPad and Return to Factory Settings are installed. The Acting Headteacher will introduce a routine for the regular accounting of student iPads. The Acting Headteacher will also liaise with the after-school club leaders regarding the importance of accountability of school iPads to assure their safe return at the end of each session.

Server: Is situated in the staff room and is backed up to the Cloud. The school will work with their IT Technician to introduce a robust procedure and routine for regular data cleansing.

School Kitchen: Is operated by Norse and all allergy information is kept securely.

First Aid Records: Completed records are stored in a locked cupboard in the main office. These records are then archived.

Administering of Medicine: Records are kept on file, in a locked cabinet. DPE recommend that these documents are retained for 6 years once the student has left the school.

Medical Student Care Plans: Are stored securely in student files and kept in locked cabinets. The SENCo has electronic and hard copies of these plans.

Staffroom: Staff pigeonholes were checked and information was found containing confidential and sensitive information relating to students and staff. These included a 'SEN Child Missing Education' form, details of a student receiving support as detailed on a 'Family Support Delivery Programme', a 'Child Centred Plan' as well as a Staff Absence Form.

New Building: Laptop trolley is situated immediately on entry to the building. Ensure that the laptop trolley is locked when not in use, to minimize risk of theft.

KS2 Group Room: Ensure that iPad trolley is locked when not in use, or when room is left empty.

Year 5 /6 Classroom: Various letters and reports were found on teacher's desk, detailing first name and surname of students. A list of students taking part in Play Therapy, was easily available. Ensure that these are stored securely. Cupboard containing student personal files was found to be unlocked in an empty classroom. Ensure that the cupboards remain secure at all times.

Reception Classroom: Images taken on iPads are uploaded to Tapestry and then deleted from the device on a weekly basis.

Year 1 / 2 Classroom: Observation sheets detailing student's full names were found in the TA work area. SEN folder was found on an open bookshelf. Reports detailing intervention strategies were found in a folder, these related to a past student. The cabinet containing student files and Child Protection files was found to be unlocked.

Headteacher's Office: Pupil Premium strategy statement and pupil progress charts were on clear display. Advised that these are removed as the room is used to host meetings with parents.

2. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

2.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme

guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommend schools develop procedures to ensure iPads/Tablets can be accounted for daily and data (i.e photos) can be cleared if lost or stolen (for Apple devices: [Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed a number of themed GDPR audits during the summer term 2019. DPE has provided feedback to the findings which can be obtained from the News section of the school website: <https://kb.dataprotection.education/news-top/news>